

June 15, 2026
Dept. 9
Probate Tentative Rulings

9.	25PR0239	IN THE MATTER OF THE PETROCCHI 1994 TRUST
Petition to Compel Trustee to Provide Responses to First Account and Report, Breach of Trust, Removal, Costs and Attorneys fees		

This matter is before the court for hearing of the petition filed September 12, 2025, which seeks an order: (1) compelling the trustee to provide responses to the first account and report; (2) compelling redress of a breach of trust; (3) removing the trustee; and (4) granting petitioner attorney fees and costs.

The hearing has been continued multiple times based upon stipulation and/or request of the parties. The court includes below a copy of its tentative ruling issued January 26, 2026.

The settlor Beatrice Petrocchi amended the Trust on August 12, 2020, and died on October 30, 2021. Following a succession of resignations of named trustees (Petition, Exhs. A-C), on November 17, 2022 Paul Petrocchi served a Notification by Trustee pursuant to Probate Code § 16061.7(a)(2) that he was serving as the current trustee. Petition, Exh. D. According to the Petition, a First Account was received from the trustee on February 10, 2023, and no accounting has been received since. Petition, Exhs. E, F, G. Petitioner is a beneficiary of the Trust.

Petitioner alleges that the trustee has not provided any further accounting after February 10, 2023, despite repeated requests from Petitioner. Petition, page 3:5-10, Exh. G. Petitioner requests the Court to compel the trustee to respond to Petitioner's June 18, 2025, inquiry regarding specifics of the First Account and Report made pursuant to Probate Code § 16061. Petitioner alleges that the trustee has breached his fiduciary duty in failing to deal impartially with beneficiaries (Probate Code § 16003), to preserve Trust property (Probate Code § 16006), to make Trust property productive (Probate Code § 16007), to follow the standard of care of a prudent investor (Probate Code §§ 16045-16049) and to provide beneficiaries with relevant information pertaining to the trust on written request (Probate Code § 16061).

Petitioner further believes that the trustee improperly valued personal property distributed to favor Trustee, that the trustee incurred \$235,573.06 in losses from the sale of stock. And that the trustee has not yet made final distributions and continues to hold significant liquid assets.

Petitioner further requests the Court:

- To order the trustee to reimburse Petitioner for half the value of the loss of the stock sales;
- To require the trustee to provide an accounting for the period of October 30, 2021;
- To remove the trustee and appoint a professional trustee who should be instructed to revalue the personal property that has already been distributed.

June 15, 2026
Dept. 9
Probate Tentative Rulings

Petitioner also requests award of attorney's fees based on the probate Court's broad equitable powers.

At the hearing on January 5, 2026, the Court indicated that if documents are not produced the Court would be inclined to suspend the Trustee.

On March 12, 2026, Petitioner issued a subpoena duces tecum directed to Charles Schwab. As of March 17, 2026, the parties intended to continue meet and confer efforts and review and share documents. Nothing new has been filed since March 17, 2026.

TENTATIVE RULING #9: APPEARANCES ARE REQUIRED AT 8:30 A.M., MONDAY, JUNE 15, 2026, IN DEPARTMENT NINE.